



A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Members of the City Council, City of Cheyenne

FROM: Erin Gates, PE, Staff Engineer *ENG*

DATE: September 18, 2024

SUBJECT: A resolution authorizing the City Engineer to execute Temporary Construction Easements on behalf of the City of Cheyenne.

Please find attached a proposed resolution that provides authorization to the City Engineer for the execution of Temporary Construction Easements associated with the Storey Boulevard and Summit Drive Extension project and the East Dell Range Construction project. It is anticipated that both projects will require a number of Temporary Construction Easements will need to be secured to allow for the proper construction of the proposed improvements. It is anticipated that by extending the Mayor's authorization to execute Temporary Construction Easements to the City Engineer for these two projects will more efficiently utilize the time of the Governing Body and city staff resources. Your support and approval of this resolution is respectfully requested.

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION EXPRESSING THE SUPPORT OF THE GOVERNING BODY FOR THE CITY ENGINEER TO EXECUTE CERTAIN TEMPORARY CONSTRUCTION EASEMENTS ON BEHALF OF THE CITY OF CHEYENNE ASSOCIATED WITH THE STOREY BOULEVARD AND SUMMIT DRIVE EXTENSION PROJECT AND THE EAST DELL RANGE CONSTRUCTION PROJECT."

WHEREAS, the City of Cheyenne routinely engages in public infrastructure projects to conduct necessary maintenance, repairs and improvements to the transportation elements of the city, including city streets, sidewalks and traffic control devices;

WHEREAS, the scope of these projects varies but on many occasions the City Engineer's Office must coordinate with real property owners adjacent to the projects' bounds and secure Temporary Construction Easements (TCEs). These easements are necessary when the work of the City cannot be completed within the public right-of-way, for example when conducting certain earthwork or paving to ensure that the road surface follows the correct grade for proper drainage, safety and usability.

WHEREAS, when a TCE is necessary as part of a city construction project, the governing body customarily affirms and supports the Mayor's authority to execute the attendant easement agreement;

WHEREAS, the City of Cheyenne is currently engaged in administering the Storey Boulevard and Summit Drive Extension Project, and the East Dell Range Construction Project, with both projects anticipated to require TCEs under a number of circumstances;

WHEREAS, the objective of the Storey Boulevard and Summit Drive Extension Project is to reconstruct Summit Drive beginning at the intersection with North College Drive and continuing east to the intersection with Highland Road. The project would further improve and extend Storey Boulevard beginning at the intersection with Whitney Road and continue west to intersect with Highland Road. This project contemplates many improvements, not only to support the movement of traffic but to address stormwater drainage within the corridor;

WHEREAS, the objective of the East Dell Range Construction Project is to reconstruct and expand Dell Range Boulevard to a five (5) lane urban section, beginning at the intersection with Griffith Avenue and continuing east to the intersection with Van Buren Avenue.

WHEREAS, The East Dell Range Construction Project is planned to include on-street bike lanes, a center lane to allow for vehicle access to businesses and adjoining streets and the installation of a traffic signal at the intersection with Van Buren Avenue. This signal is intended to support safer pedestrian crossings near Dildine Elementary School. This project also plans to incorporate improvements to the storm sewer, water, and sanitary sewer systems;

WHEREAS, due to the large scope of the Storey Boulevard and Summit Drive Extension and the East Dell Range Construction Projects, the City Engineer's Office will need to secure numerous TCEs for each project and at different time intervals as each project progresses;

WHEREAS, in the interest of efficiency and to better utilize the time of the Governing Body and city staff and resources, it is appropriate that the Mayor be able to execute the necessary TCEs associated with each City project without additional advisement or consent by the Governing Body; and

WHEREAS, it is also appropriate that the Mayor be able to empower the City Engineer as his official designee to execute the necessary TCEs on behalf of the City in the interest of efficiency in the management of these projects.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Mayor has the consent and support to execute all necessary temporary construction easements associated with the Storey Boulevard and Summit Drive Extension Project, and the East Dell Range Construction Project, without further consultation with the Governing Body; and

BE IT FURTHER RESOLVED, that the Governing Body does not object to the Mayor delegating his signature authority for the execution of the temporary construction easements should he believe it would be appropriate and help expedite the completion of these projects.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk